

**SENATE . . . . . No. 1008****The Commonwealth of Massachusetts**

PRESENTED BY:

***Joan B. Lovely***

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

**An Act relative to the Massachusetts rental voucher program.**

PETITION OF:

| NAME:                      | DISTRICT/ADDRESS:                        |                  |
|----------------------------|------------------------------------------|------------------|
| <i>Joan B. Lovely</i>      | <i>Second Essex</i>                      |                  |
| <i>James K. Hawkins</i>    | <i>2nd Bristol</i>                       | <i>2/8/2025</i>  |
| <i>James B. Eldridge</i>   | <i>Middlesex and Worcester</i>           | <i>2/8/2025</i>  |
| <i>Jason M. Lewis</i>      | <i>Fifth Middlesex</i>                   | <i>2/12/2025</i> |
| <i>Patricia D. Jehlen</i>  | <i>Second Middlesex</i>                  | <i>2/19/2025</i> |
| <i>Bruce E. Tarr</i>       | <i>First Essex and Middlesex</i>         | <i>2/26/2025</i> |
| <i>Nick Collins</i>        | <i>First Suffolk</i>                     | <i>3/4/2025</i>  |
| <i>Vanna Howard</i>        | <i>17th Middlesex</i>                    | <i>3/10/2025</i> |
| <i>Patrick M. O'Connor</i> | <i>First Plymouth and Norfolk</i>        | <i>3/21/2025</i> |
| <i>Joanne M. Comerford</i> | <i>Hampshire, Franklin and Worcester</i> | <i>3/27/2025</i> |
| <i>Michael D. Brady</i>    | <i>Second Plymouth and Norfolk</i>       | <i>3/27/2025</i> |
| <i>John F. Keenan</i>      | <i>Norfolk and Plymouth</i>              | <i>4/2/2025</i>  |
| <i>Liz Miranda</i>         | <i>Second Suffolk</i>                    | <i>4/4/2025</i>  |
| <i>Rebecca L. Rausch</i>   | <i>Norfolk, Worcester and Middlesex</i>  | <i>4/4/2025</i>  |
| <i>Sal N. DiDomenico</i>   | <i>Middlesex and Suffolk</i>             | <i>4/8/2025</i>  |
| <i>Adam Gómez</i>          | <i>Hampden</i>                           | <i>4/15/2025</i> |
| <i>Brendan P. Crighton</i> | <i>Third Essex</i>                       | <i>4/22/2025</i> |
| <i>Paul W. Mark</i>        | <i>Berkshire, Hampden, Franklin and</i>  | <i>7/18/2025</i> |

|                      |                                          |                   |
|----------------------|------------------------------------------|-------------------|
| <i>Lydia Edwards</i> | <i>Hampshire</i><br><i>Third Suffolk</i> | <i>10/30/2025</i> |
|----------------------|------------------------------------------|-------------------|

# SENATE . . . . . No. 1008

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By Ms. Lovely, a petition (accompanied by bill, Senate, No. 1008) of Joan B. Lovely, James K. Hawkins, James B. Eldridge, Jason M. Lewis and other members of the General Court for legislation relative to the Massachusetts rental voucher program. Housing.

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[SIMILAR MATTER FILED IN PREVIOUS SESSION  
SEE SENATE, NO. 888 OF 2023-2024.]

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to the Massachusetts rental voucher program.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Chapter 121B of the General Laws, as appearing in the 2020 Official Edition, is hereby  
2 amended by adding the following section:-

3           Section 61. (a) The department shall, subject to appropriation, establish and administer  
4 through administering agencies, the Massachusetts Rental Voucher Program also known as  
5 MRVP, a program of rental assistance for eligible low-income, very low-income, and extremely  
6 low-income households through mobile and project-based vouchers for the purpose of obtaining  
7 decent, stable, and affordable housing and promoting economically mixed housing. The  
8 department shall issue the number of vouchers anticipated to completely utilize, but not exceed  
9 the appropriation for this program; provided further, that the department shall establish the

amounts of the mobile and project-based vouchers so that the appropriation in this item shall not be exceeded by payments for rental assistance and administration.

(b) To be eligible to receive assistance under this section, a household shall have a net income that does not exceed 80 percent of the area median income, as determined by the U.S. Department of Housing and Urban Development. The department may award mobile vouchers to eligible households occupying MRVP project-based units that shall expire due to the non-renewal of project-based rental assistance contracts. Households shall meet eligibility requirements as required in this section and applicable regulations and guidance issued by the department. Not less than 75 percent of the vouchers shall be targeted to households whose income at initial occupancy does not exceed 30 percent of the area median income.

(c) A payment standard is the amount used by an administering agency to calculate the maximum amount of the MRVP subsidy. Except as provided under paragraph (d), the payment standard for each size of a dwelling unit in a market area shall not exceed 110 percent of the fair market rent, or Small Area Fair Market Rent as established annually by the U.S. Department of Housing and Urban Development, for the same size of dwelling unit in the same market area and shall be not less than 100 percent of that fair market rent, except that no administering agency shall be required as a result of a reduction in the fair market rent to reduce the payment standard applied to a household continuing to reside in a unit for which the household was receiving assistance under this section at the time the fair market rent was reduced. The department shall allow administering agencies to request exception payment standards within fair market rental areas subject to criteria and procedures established by the department.

(d) The department may require an administering agency to submit the payment standard of the administering agency to the department for approval, if the payment standard is less than 100 percent of the fair market rent or exceeds 110 percent of the fair market rent, except that an administering agency may establish a payment standard of not more than 120 percent of the fair market rent where necessary as a reasonable accommodation for a person with a disability, without approval of the department. An administering agency may use a payment standard that is greater than 120 percent of the fair market rent as a reasonable accommodation for a person with a disability, but only with the approval of the department. In connection with the use of any increased payment standard established or approved pursuant to either of the preceding two sentences as a reasonable accommodation for a person with a disability, the department may not establish additional requirements regarding the amount of adjusted income paid by such person for rent.

(e) A household that receives tenant-based assistance under this section, with respect to any dwelling unit, shall not pay for rent more than 30 per cent of the monthly adjusted net income of the household; except that households receiving tenant-based assistance under this section may pay more than 30 per cent of the monthly adjusted net income of the household, at their option, in excess of the payment standard for the voucher, provided that this amount may not exceed 40 per cent of the monthly adjusted net income of the household in the first year of occupancy; provided further that the department shall adjust household rent for those paying separately for utilities.

(f) The rent for dwelling units for which a housing assistance payment contract is established under this subsection shall be reasonable in comparison with rents charged for comparable dwelling units in the private, unassisted local market.

(g) For each dwelling unit for which a housing assistance payment contract is established under this section, the administering agency shall inspect the unit before any assistance payment is made to determine whether the dwelling unit meets the minimum standards of fitness for human habitation as required by the State Sanitary Code. These requirements cannot be waived. Each administering agency providing assistance under this section shall, for each assisted dwelling unit, make inspection not less often than biennially during the term of the housing assistance payments contract for the unit to determine whether the unit is maintained in accordance with the requirements of this paragraph.

(h) Effective as of January 1, 2022, the monthly administrative fee for all vouchers administered under this section shall be not less than the administrative fee rates for the Housing Choice Voucher Program, as established annually by the U.S. Department of Housing and Urban Development \$80.00 per voucher, per month.

(i) The department shall maintain and administer a single voucher management system and shall collect data on the utilization of rental vouchers in each fiscal year under this program. This data shall include, but not be limited to: the location and value of each voucher-assisted unit; the number and average value of mobile and project-based vouchers currently distributed in the Commonwealth, in each county, and in each municipality; the household size; age of the head of household and each member of the household; the race and ethnicity of each household; the income and source of income of each household. The department shall report to the House and Senate Committees on Ways and Means and Joint Committee on Housing annually on the utilization of rental vouchers in each fiscal year under this program. The department shall collect and report on the data collection as required under Chapter 334 of the Acts of 2006.

76           (j) The department shall promulgate regulations and guidance to implement this section.

77           (k) Any unspent funding appropriated for this program through budget line-item 7004-

78   9024 in any fiscal year shall not revert, but shall be made available for the purposes of the item

79   in the next fiscal year.